

Hearing, objections and post-order instructions

The court decides eligibility and relief. Do not fill judicial findings, prosecutor decisions, hearing dates or court/service certifications.

R.C.2953.32 and 2953.33 hearings follow the applicable 45–90 day statutory framework.

Follow the actual court notice, preserve prosecutor/victim notice and objection rights, and bring requested records; no generated hearing date is supplied.

Stop for legal assistance: Any dismissal without prejudice where the limitations period has not expired.

Stop for legal assistance: Any incident that produced more than one charge with different dispositions, which triggers ORC 2953.61.

Stop for legal assistance: Pending criminal proceedings or open warrants.

Stop for legal assistance: Prosecutor objection, and any victim objection where applicable.

Stop for legal assistance: Choosing between sealing and expungement, which is a legal judgment with different waits and different exclusions.

Stop for legal assistance: Immigration exposure.

Ohio has both sealing and expungement and they are different remedies. Neither remedy means that the record is completely gone from everywhere.

"Eligible offender" no longer exists. SB 288 removed that definition from ORC 2953.31 and with it the numeric cap on how many convictions a person could seal. Do not use the former numeric conviction cap to decide whether you can apply; the current exclusions and other requirements still apply.

Before filing, review every charge from the same incident and how each charge ended under

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R.C. 2953.61.

"Sentence" does not include payment of court costs, so unpaid court costs do not delay eligibility.

If relief is granted, retain the signed order and follow its agency distribution directions. The BCI request is a blank post-order transmission companion for the authorized sender, not an application for relief. Do not sign, date, check record-system boxes or certify a judicial order before those events occur.

Any requested DNA relief needs the applicable separate court direction; it does not erase records remaining in NDIS. No DNA application is generated by this packet.